



University of Piraeus
School of Information and Communication Technologies
Department of Digital Systems
MSc 'Cybersecurity and Artificial Intelligence Technologies'

Security and Privacy Legal Framework
Spyware (Pegasus, Predator) and Legal Issues

Supervising Professor: E. Mitrou

Βιτιόν Αντριάννα

andriana_vition@ssl-unipi.gr

Ioannis Kalaitzidis

ioannis_kalaitzidis@ssl-unipi.gr

Σπίνουλα Ιωάννα

ioanna_spinoula@ssl-unipi.gr

Piraeus

Abstract

This MSc thesis examines, through the lens of digital constitutionalism, the legal and technological challenges arising from the use of intrusive spyware by state actors, focusing on the cases of Pegasus and Predator. The analysis demonstrates that these tools constitute a systematic violation of fundamental rights — particularly the right to privacy, the right to a fair trial, and the freedom of the press.

Abstract

This master's thesis examines, through the lens of digital constitutionalism, the legal and technological challenges posed by the use of intrusive spyware, focusing on Pegasus and Predator. After clarifying the technical mechanisms of their infection and operation, and particularly zero-click attacks, it analyses the institutional and legal framework governing the lifting of communications confidentiality at the national and European level, as well as the role of the Independent Authorities. Drawing on the case studies of the international Pegasus scandal and the Greek “Predatorgate”, it

demonstrates that the invocation of national security often operates as a legal facade for circumventing the principle of proportionality, effective judicial review and the right of the affected person to be informed. The thesis concludes with *de lege ferenda* proposals, suggesting the transposition of the risk-based approach of the EU Artificial Intelligence Act (AI Act) to the regulation of spyware.

Contents

1. Introduction.....	5
The 'Digital Constitutionalism' and the limits of digital power.....	
Technological background and conceptual definitions.....	
Definition and categorisation of spyware (Spyware vs. Malware).....	
Infection mechanisms and operation of digital interception tools (Zero-Click Exploits).....	
Institutional and legal framework of communications interception.....	
The constitutional guarantee, the previous regime (Law 2225/1994) and the need for reform	
The new Law 5002/2022: Communications secrecy lifting procedure and innovations.....	
The institutional role of Independent Authorities.....	
Authority for the Assurance of Communications Confidentiality (ADAE).....	
Personal Data Protection Authority (APDPCH).....	
Legal issues and challenges.....	
National security vs. individual rights.....	
Lack of judicial control and transparency.....	
Formal and substantive judicial scrutiny.....	
State secrecy as a barrier to Independent Authorities.....	
The shrinkage of ex post review and accountability.....	
The liability of software manufacturing companies.....	

The dual-use goods regime.....	
Corporate responsibility and international human rights law.....	
International sanctions and strategic litigation.....	
The right of notification of the subject (Council of State Plenary 465/2024).....	
Case Studies.....	
5.1 Pegasus Case: International reactions and sanctions.....	
5.2 Greek case: Predatorgate — Legal and Political Implications.....	
5.2.1 The 'hybrid' surveillance model.....	
5.2.2 Legislative interventions and institutional response.....	
5.2.3 Political and international implications.....	
5.2.4 The criminal outcome and the clash of narratives (2024-2026).....	
6. Conclusions and policy proposals.....	
6.1 Summary and assessment of research findings.....	
6.2 De Lege Ferenda proposals: Transferring the AI Act model to the regulation of spyware in the EU.....	
7. Bibliography.....	

1. Introduction

1.1 The 'Digital Constitutionalism' and the limits of digital power

The subject of this research is the critical legal and technological analysis of the use of intrusive spyware by state actors, focusing on the Pegasus and Predator software. These tools constitute an extreme form of digital surveillance, capable of transforming a mobile device into a complete intelligence gathering tool.

For understanding these challenges, the analysis is based on the theoretical lens of 'Digital Constitutionalism' (Digital Constitutionalism), which refers to the movement for incorporating values, principles and individual rights into the design and governance of digital communication architectures.

Specifically in the case of interception software, the concept of digital constitutionalism sets the absolutely necessary limits on state power: surveillance must be lawful, proportionate and subject to independent judicial review.

2. Technological background and conceptual definitions

Before the legal analysis of privacy violation, it is necessary to clarify the basic technical concepts. The term 'intrusive software' or spyware refers to software designed to secretly collect, transmit, and process data from a target device, without the knowledge or consent of its user.

2.1 Definition and categorisation of spyware (Spyware vs. Malware)

Spyware is defined as a software product aimed at monitoring and collecting sensitive information from a user's device, without their knowledge or consent, transmitting this data to a third party.

The literature distinguishes two characteristic types of spyware. The first is Adware, which collects browsing data and preferences for commercial purposes. The second is the category of advanced interception tools — commercial surveillance tools (Lawful Interception Tools) or mercenary/state-sponsored spyware — designed for targeted, comprehensive and covert surveillance.

For the detection of these software, four basic methods are mentioned: the Static Method (which analyses the software's code without executing it), the Dynamic Method (which monitors its behaviour during execution), the Heuristic Method (which identifies suspicious behavioural patterns) and the Cloud Method (which utilises cloud databases).

Detection Methods

2.2 Infection mechanisms and operation of digital interception tools (Zero-Click Exploits)

As regards attack mechanisms, installation can be achieved through the exploitation of unknown software vulnerabilities (zero-day exploits), targeted phishing techniques (spear-phishing), or — in the most advanced cases — via zero-click exploits that require no user interaction whatsoever.

The most characteristic examples of modern and extremely sophisticated spyware are Pegasus and Predator, developed by NSO Group and Intellexa/Cytrox respectively.

Despite the technological complexity, the human factor remains the weakest link. Successful installation of software through social engineering exploits the user's tendency to trust seemingly legitimate communications.

3. Institutional and legal framework of communications interception

3.1 The constitutional guarantee, the previous regime (Law 2225/1994) and the need for reform

In the Greek legal system, the foundation of the protection of private communications is set by the Constitution itself. Specifically, Article 19 para. 1 guarantees the absolute secrecy of letters and all other forms of free correspondence or communication.

In parallel, the Constitution creates a broader privacy protection framework, linking inseparably the secrecy of communications with the protection of personal data (Article 9A) and the inviolability of the home (Article 9).

Before the radical reform of the legal framework with Law 5002/2022, the procedure for lifting secrecy was governed by Law 2225/1994.

3.2 The new Law 5002/2022: Communications secrecy lifting procedure and innovations

This new law was enacted with the declared aim of modernising the procedure for lifting the secrecy of communications, aiming at greater efficiency in investigations while simultaneously strengthening the guarantees for the protection of individual rights.

The most pivotal point of the law, however, with respect to the subject of this study, is its approach towards the use of spyware by state authorities, particularly EYP (National Intelligence Service).

3.3 The institutional role of Independent Authorities

3.3.1 Authority for the Assurance of Communications Confidentiality (ADAE)

The Authority for the Assurance of Communications Confidentiality (ADAE) constitutes a constitutionally established Independent Authority.

To fulfil its purpose, the ADAE has extensive supervisory powers. Specifically, it conducts regular and ad hoc inspections of telecommunications companies.

Faced with modern technological challenges and the emergence of spyware use cases, the institutional role of the ADAE in the Greek legal order is characterised by a fundamental paradox.

3.3.2 Personal Data Protection Authority (APDPCH)

The Personal Data Protection Authority (APDPCH) constitutes a constitutionally established Independent Authority, having as its mission the monitoring of the implementation of the General Data Protection Regulation (GDPR).

In cases of spyware use, the APDPCH assumes a distinct but equally critical role in relation to the ADAE.

4. Legal issues and challenges

The use of spyware by state actors highlights a series of fundamental legal challenges.

4.1 National security vs. individual rights

The use of spyware creates a fundamental tension in the modern Rule of Law. At the centre of this tension lies the conflict between two equally important constitutional values: national security and individual rights.

In the Greek Constitution, Article 19 para. 1 provides that the secrecy of letters and of free correspondence or communication shall be absolutely inviolable.

According to established jurisprudence and constitutional theory, for a restriction to be compatible with the Constitution it must satisfy the triple test of proportionality.

- **Suitability (appropriateness): the chosen means must be objectively suited to the achievement of the intended objective.**
- **Necessity: the selection of the 'mildest possible means' is required. If the objective of national security can be achieved by means less invasive of the right, the use of invasive spyware is unconstitutional.**
- **Proportionality: a reasonable proportion must exist between the gravity of the rights violation and the importance of the public interest being pursued.**

In cases of software such as Pegasus or Predator, adherence to proportionality is strongly contested.

4.2 Lack of judicial control and transparency

The protection of individual rights against state arbitrariness depends directly on the existence of a truly independent and effective judicial review.

4.2.1 Formal and substantive judicial scrutiny

A basic institutional safeguard is the participation of a judicial or prosecutorial officer, who approves the lifting of secrecy.

4.2.2 State secrecy as a barrier to Independent Authorities

A particularly complex issue arises when the executive power invokes 'state secrecy' to limit the supervisory capacity of independent authorities.

4.2.3 The shrinkage of ex post review and accountability

Transparency requires that the monitored person should, after the conclusion of the measure (ex post), have the possibility to be informed and thus be able to exercise judicial review.

4.3 The liability of software manufacturing companies

The global surveillance software market is controlled primarily by private companies. Two emblematic examples are NSO Group (developer of Pegasus) and Intellexa/Cytrox (developer of Predator).

4.3.1 The dual-use goods regime

From a legal perspective, advanced surveillance software is classified as dual-use goods, since they can be used for both civilian and military/security purposes.

4.3.2 Corporate responsibility and international human rights law

The UN Guiding Principles on Business and Human Rights (UNGPs) require companies to conduct human rights due diligence — a systematic assessment of their activities' impact on fundamental rights.

4.3.3 International sanctions and strategic litigation

The absence of a unified global jurisdictional body for the prosecution of these companies has led to the deployment of alternative enforcement tools.

4.4 The right of notification of the subject (Council of State Plenary 465/2024)

The right of notification of the subject after the conclusion of the surveillance measure constitutes a cornerstone of effective judicial protection.

The organic connection with the right to judicial protection.

In Greek constitutional law, the right of notification is inextricably linked to Article 20 para. 1 of the Constitution (provision of legal protection).

The breakthrough of the Council of State jurisprudence (Plenary 465/2024).

The issue came to the forefront after the 2021 legislative regulation, which categorically prohibited the ADAE from notifying the subject of a surveillance measure for reasons of national security.

International standards.

The ECtHR jurisprudence consistently holds that states are obliged to notify the affected person as soon as this becomes feasible without jeopardising ongoing investigations.

5. Case Studies

This chapter analyses two emblematic cases that demonstrate in practice the legal challenges of chapter 4.

5.1 Pegasus Case: International reactions and sanctions

The revelation of the mass use of the Pegasus software, developed by Israeli NSO Group, triggered a global institutional reaction, marking a turning point in international jurisprudence and policy regarding spyware.

The scandal and cross-border targeting.

The peculiarity of the scandal lies in the fact that the targeting was not limited to persons connected with common crime, but extended to fundamental actors of democratic life.

The institutional reaction of the European Union.

Recognising that European territories and citizens had become targets, the European Parliament established a special investigative committee (PEGA) to examine the use of Pegasus and similar software.

The imposition of international sanctions.

The most tangible sanction at the corporate level came from the US: the Commerce Department included NSO Group in the Entity List.

5.2 Greek case: Predatorgate — Legal and Political Implications

The Greek case, internationally known as Predatorgate, constitutes one of the most complex European examples, as it highlighted the convergence of legal, institutional, and political dimensions.

5.2.1 The 'hybrid' surveillance model

The legal peculiarity of the Greek scandal is found in the simultaneous or successive targeting of the same persons through two different, legally incompatible tools.

5.2.2 Legislative interventions and institutional response

The evolution of the case was marked by legislative initiatives that limited transparency.

5.2.3 Political and international implications

At the political level, the case caused tremors in governmental stability, leading in the summer of 2022 to the resignations of key government officials.

5.2.4 The criminal outcome and the clash of narratives (2024-2026)

At the judicial level, the case followed two distinct paths that fuelled opposing narratives. On the one hand, in July 2024 the Supreme Court (Areios Pagos) acquitted state services (EYP/Greek Police) of involvement in the illegal installation of Predator. On the other hand, a few months later a criminal court convicted four private individuals for their role in the illegal surveillance network.

The contradiction of these two judgements sharpened the public controversy. The government maintained unchanged its position that no state involvement in the illegal part of the surveillance existed.

Overall, the Predatorgate functions as a 'laboratory' of all the challenges of chapter 4: the disproportionality of the means, the lack of judicial control, the shrinkage of ex post transparency, and the liability of the manufacturing companies.

6. Conclusions and policy proposals

6.1 Summary and assessment of research findings

This research demonstrated that the rapid evolution and use of spyware, such as Pegasus and Predator, constitutes a systemic challenge to the Rule of Law in the EU and in Greece.

As illustrated in the case studies, particularly in the Greek 'Predatorgate', the operation of hybrid surveillance models — combining lawful instruments (EYP) with illegal commercial spyware (Predator) — highlights the danger of circumventing legal safeguards.

In conclusion, the existing regulatory framework, including the dual-use goods regime, the GDPR, and the national legal frameworks, has proven incapable of effectively addressing the phenomenon of mercenary spyware.

6.2 De Lege Ferenda proposals: Transferring the AI Act model to the regulation of spyware in the EU

De lege ferenda (for the law to be enacted), addressing the phenomenon requires a radical regulatory breakthrough at the European level.

It must be clarified from the outset that spyware does not in themselves constitute an 'AI system' within the definition of the AI Act.

The AI Act's regulatory architecture can be adapted to spyware as follows:

- **Unacceptable risk (prohibited practices):** Just as the AI Act prohibits systems that manipulate human behaviour, spyware deployed outside any legal framework with zero-click infection should be categorically prohibited.
- **High risk (strictly regulated use):** Advanced targeted spyware, when intended exclusively for national security purposes and subject to judicial authorisation, should be treated as a high-risk product.
- **Fundamental Rights Impact Assessment (FRIA):** Mandatory fundamental rights impact assessment prior to any state procurement or use.
- **Traceability (Logging):** The software must incorporate tamper-proof logging (logs) of all actions.
- **CE certification:** Manufacturing companies will be obliged to undergo conformity assessment procedures.
- **Corporate accountability and transparency:** In line with the AI Act, production and marketing companies should be obliged to maintain a complete register of authorised clients.

The transfer of the AI Act's regulatory architecture to the spyware domain may offer a realistic institutional solution, bridging the existing gap between technological reality and legal regulation.

7. Bibliography

- [1] Celeste, E. (2019). Digital constitutionalism: a new systematic theorisation. *International Review of Law, Computers & Technology*, 33(1), 76-99.
- [2] Suzor, N. P. (2018). Digital constitutionalism: Using the rule of law to evaluate the legitimacy of governance by platforms. *Social Media + Society*, 4(3).
- [3] Μήτρου, Λ. (2024). Τα όρια της ψηφιακής εξουσίας και το Κράτος Δικαίου: Προκλήσεις από την Τεχνητή Νοημοσύνη και τις τεχνολογίες επιτήρησης. (Πανεπιστημιακές Παραδόσεις / Σημειώσεις). Αθήνα.
- [4] Anglano, C. (2025). A review of mobile surveillanceware: Capabilities, countermeasures, and research challenges. *Electronics*, 14(14), 2763. <https://doi.org/10.3390/electronics14142763>
- [5] Karwayun, R., Sharma, P., Sainger, M., Joshi, N., & Manna, S. (2024). Role of spyware in the intelligent digital age: A comparative analysis. 2024 4th International Conference on Advancement in Electronics & Communication Engineering (AECE), 1058-1066. <https://doi.org/10.1109/AECE62803.2024.10911775>
- [6] Payton, A. M. (2006). A review of spyware campaigns and strategies to combat them. In *Proceedings of the 3rd Annual Conference on Information Security Curriculum Development* (pp. 136-141).
- [7] Naser, M., Albazar, H., & Abdel-Jaber, H. (2023). Mobile spyware identification and categorization: A systematic review. *Informatica*, 47(8). <https://doi.org/10.31449/inf.v47i8.4881>
- [8] Namanya, A. P., Cullen, A., Awan, I. U., & Disso, J. P. (2018). The world of malware: An overview. 2018 IEEE 6th International Conference on Future Internet

of Things and Cloud (FiCloud), 420-427.
<https://doi.org/10.1109/FiCloud.2018.00067>

- [9] Marczak, B., Scott-Railton, J., McKune, S., Razzak, B. & Deibert, R. (2020-2021). Citizen Lab reports: «The Great iPwn» (2020) & «FORCEDENTRY: NSO Group iMessage Zero-Click Exploit Captured in the Wild» (2021). The Citizen Lab, University of Toronto.
- [10] Βουλή των Ελλήνων. (2019). Σύνταγμα της Ελλάδας. Άρθρο 19, παρ. 1, εδ. α'. Ανακτήθηκε από <https://www.hellenicparliament.gr/vouli-ton-ellinon/to-politevma/syntagma/article-19/>
- [11] Βουλή των Ελλήνων. (2019). Σύνταγμα της Ελλάδας. Άρθρο 19, παρ. 1, εδ. β'. Ανακτήθηκε από <https://www.hellenicparliament.gr/vouli-ton-ellinon/to-politevma/syntagma/article-19/>
- [12] Βουλή των Ελλήνων. (2019). Σύνταγμα της Ελλάδας. Άρθρο 9, παρ. 1, εδ. α' και β'. Ανακτήθηκε από <https://www.hellenicparliament.gr/vouli-ton-ellinon/to-politevma/syntagma/article-19/>
- [13] Βουλή των Ελλήνων. (2019). Σύνταγμα της Ελλάδας. Άρθρο 9Α, εδ. α'. Ανακτήθηκε από <https://www.hellenicparliament.gr/vouli-ton-ellinon/to-politevma/syntagma/article-19/>
- [14] Βουλή των Ελλήνων. (2019). Σύνταγμα της Ελλάδας. Άρθρο 19, παρ. 3. Ανακτήθηκε από <https://www.hellenicparliament.gr/vouli-ton-ellinon/to-politevma/syntagma/article-19/>
- [15] Βουλή των Ελλήνων. (2019). Σύνταγμα της Ελλάδας. Συνδυαστική εφαρμογή του Άρθρου 19, παρ. 2 και του Άρθρου 9Α, εδ. β'. Ανακτήθηκε από <https://www.hellenicparliament.gr/vouli-ton-ellinon/to-politevma/syntagma/article-19/>
- [16] Νόμος 2225/1994. (1994). Για την προστασία της ελευθερίας της ανταπόκρισης και επικοινωνίας και άλλες διατάξεις. ΦΕΚ Α' 121/20.07.1994. Ανακτήθηκε από <https://www.dikaio.ai/fek/1994/01/121>
- [17] Νόμος 2225/1994. (1994). Για την προστασία της ελευθερίας της ανταπόκρισης και επικοινωνίας και άλλες διατάξεις. ΦΕΚ Α' 121/20.07.1994. Συνδυαστική εφαρμογή του Άρθρου 3, παρ. 2 και του Άρθρου 5, παρ. 1. Ανακτήθηκε από <https://www.dikaio.ai/fek/1994/01/121>
- [18] Νόμος 5002/2022. (2022). Διαδικασία άρσης του απορρήτου των επικοινωνιών, κυβερνοασφάλεια και προστασία προσωπικών δεδομένων πολιτών.

ΦΕΚ Α' 228/09.12.2022. Άρθρο 50, παρ. 1. Ανακτήθηκε από https://www.hellenicparliament.gr/Nomothetiko-Ergo/Anazitisi-Nomothetikou-Ergou?law_id=3715dd48-9b39-4532-9b0e-af5c014ff48e

- [19] Νόμος 5002/2022. (2022). Διαδικασία άρσης του απορρήτου των επικοινωνιών, κυβερνοασφάλεια και προστασία προσωπικών δεδομένων πολιτών. ΦΕΚ Α' 228/09.12.2022. Άρθρο 1, περ. α' και γ'. Ανακτήθηκε από https://www.hellenicparliament.gr/Nomothetiko-Ergo/Anazitisi-Nomothetikou-Ergou?law_id=3715dd48-9b39-4532-9b0e-af5c014ff48e
- [20] Νόμος 5002/2022. (2022). Διαδικασία άρσης του απορρήτου των επικοινωνιών, κυβερνοασφάλεια και προστασία προσωπικών δεδομένων πολιτών. ΦΕΚ Α' 228/09.12.2022. Άρθρο 4, παρ. 1. Ανακτήθηκε από https://www.hellenicparliament.gr/Nomothetiko-Ergo/Anazitisi-Nomothetikou-Ergou?law_id=3715dd48-9b39-4532-9b0e-af5c014ff48e
- [21] Νόμος 5002/2022. (2022). Διαδικασία άρσης του απορρήτου των επικοινωνιών, κυβερνοασφάλεια και προστασία προσωπικών δεδομένων πολιτών. ΦΕΚ Α' 228/09.12.2022. Άρθρο 4, παρ. 2. Ανακτήθηκε από https://www.hellenicparliament.gr/Nomothetiko-Ergo/Anazitisi-Nomothetikou-Ergou?law_id=3715dd48-9b39-4532-9b0e-af5c014ff48e
- [22] Νόμος 5002/2022. (2022). Διαδικασία άρσης του απορρήτου των επικοινωνιών, κυβερνοασφάλεια και προστασία προσωπικών δεδομένων πολιτών. ΦΕΚ Α' 228/09.12.2022. Άρθρο 4, παρ. 3. Ανακτήθηκε από https://www.hellenicparliament.gr/Nomothetiko-Ergo/Anazitisi-Nomothetikou-Ergou?law_id=3715dd48-9b39-4532-9b0e-af5c014ff48e
- [23] Νόμος 5002/2022. (2022). Διαδικασία άρσης του απορρήτου των επικοινωνιών, κυβερνοασφάλεια και προστασία προσωπικών δεδομένων πολιτών. ΦΕΚ Α' 228/09.12.2022. Άρθρο 6, παρ. 1 και 3. Ανακτήθηκε από https://www.hellenicparliament.gr/Nomothetiko-Ergo/Anazitisi-Nomothetikou-Ergou?law_id=3715dd48-9b39-4532-9b0e-af5c014ff48e
- [24] Νόμος 5002/2022. (2022). Διαδικασία άρσης του απορρήτου των επικοινωνιών, κυβερνοασφάλεια και προστασία προσωπικών δεδομένων πολιτών. ΦΕΚ Α' 228/09.12.2022. Άρθρο 12 (Προσθήκη άρθρου 370ΣΤ ΠΚ), παρ. 1. Ανακτήθηκε από https://www.hellenicparliament.gr/Nomothetiko-Ergo/Anazitisi-Nomothetikou-Ergou?law_id=3715dd48-9b39-4532-9b0e-af5c014ff48e

- [25] Νόμος 5002/2022. (2022). Διαδικασία άρσης του απορρήτου των επικοινωνιών, κυβερνοασφάλεια και προστασία προσωπικών δεδομένων πολιτών. ΦΕΚ Α' 228/09.12.2022. Άρθρο 13. Ανακτήθηκε από https://www.hellenicparliament.gr/Nomothetiko-Ergo/Anazitisi-Nomothetikou-Ergou?law_id=3715dd48-9b39-4532-9b0e-af5c014ff48e
- [26] Authority for the Assurance of Communications Confidentiality (ADAE). Σχετικά με την ADAE. Ανακτήθηκε από <https://adae.gov.gr/adae/sxetika-me-tin-adae>
- [27] Wikipedia. (2026, Μάρτιος 12). Αρχή Διασφάλισης του Απορρήτου των Επικοινωνιών. Ανακτήθηκε από https://el.wikipedia.org/wiki/%CE%91%CF%81%CF%87%CE%AE_%CE%94%CE%B9%CE%B1%CF%83%CF%86%CE%AC%CE%BB%CE%B9%CF%83%CE%B7%CF%82_%CF%84%CE%BF%CF%85_%CE%91%CF%80%CE%BF%CF%81%CF%81%CE%AE%CF%84%CE%BF%CF%85_%CF%84%CF%89%CE%BD_%CE%95%CF%80%CE%B9%CE%BA%CE%BF%CE%B9%CE%BD%CF%89%CE%BD%CE%B9%CF%8E%CE%BD
- [28] Authority for the Assurance of Communications Confidentiality (ADAE). Αρχική σελίδα: Ποια είναι η ADAE. Ανακτήθηκε από <https://adae.gov.gr/>
- [29] Απόφαση 1553/2022. (2022). Έγκριση Οργανισμού της Αρχής Διασφάλισης του Απορρήτου των Επικοινωνιών (Α.Δ.Α.Ε.). ΦΕΚ Β' 3030/17.06.2022. Άρθρο 6, παρ. 1. Ανακτήθηκε από https://adae.gov.gr/images/pdf/FEK-2022-Tefxos_B-03030-17_06_2022_01.pdf
- [30] Personal Data Protection Authority (APDPCH). Ανακτήθηκε από <https://www.dpa.gr/el/arxi/profile>
- [31] Wikipedia. (2026, Μάρτιος 12). Αρχή Προστασίας Δεδομένων Προσωπικού Χαρακτήρα. Ανακτήθηκε από https://el.wikipedia.org/wiki/%CE%91%CF%81%CF%87%CE%AE_%CE%A0%CF%81%CE%BF%CF%83%CF%84%CE%B1%CF%83%CE%AF%CE%B1%CF%82_%CE%94%CE%B5%CE%B4%CE%BF%CE%BC%CE%AD%CE%BD%CF%89%CE%BD_%CE%A0%CF%81%CE%BF%CF%83%CF%89%CF%80%CE%B9%CE%BA%CE%BF%CF%8D_%CE%A7%CE%B1%CF%81%CE%B1%CE%BA%CF%84%CE%AE%CF%81%CE%B1
- [32] Νόμος 4624/2019. (2019). Αρχή Προστασίας Δεδομένων Προσωπικού Χαρακτήρα, μέτρα εφαρμογής του Κανονισμού (ΕΕ) 2016/679. ΦΕΚ Α'

137/29.08.2019. Ανακτήθηκε από <http://elib.aade.gr/elib/view?d=/gr/act/2019/4624>

- [33] Νόμος 3471/2006. (2006). Προστασία δεδομένων προσωπικού χαρακτήρα και της ιδιωτικής ζωής στον τομέα των ηλεκτρονικών επικοινωνιών. ΦΕΚ Α' 133/28.06.2006. Άρθρο 1. Ανακτήθηκε από chrome-extension://efaidnbmnnnibpcajpcglclefindmkaj/https://www.dpa.gr/sites/default/files/2019-09/%CE%9D3471_06.PDF
- [34] Personal Data Protection Authority (APDPCH). Αποστολή ΑΠΔΠΧ. Ανακτήθηκε από <https://www.dpa.gr/el/arxi/apostoli>
- [35] Ευρωπαϊκή Σύμβαση Δικαιωμάτων του Ανθρώπου (ΕΣΔΑ), άρθρα 8 (ιδιωτική ζωή) και 13 (αποτελεσματικό ένδικο βοήθημα).
- [36] Βουλή των Ελλήνων. (2019). Σύνταγμα της Ελλάδας. Άρθρο 25, παρ. 1 (αρχή της αναλογικότητας κατά τον περιορισμό των ατομικών δικαιωμάτων). hellenicparliament.gr.
- [37] Χρυσόγονος, Κ. (2017). Ατομικά και Κοινωνικά Δικαιώματα. 4η έκδ., Αθήνα: Νομική Βιβλιοθήκη.
- [38] Δαγτόγλου, Π. Δ. (2012). Συνταγματικό Δίκαιο - Ατομικά Δικαιώματα. Αθήνα-Θεσσαλονίκη: Εκδόσεις Σάκκουλα.
- [39] Ορφανουδάκης, Σ. (2003). Η αρχή της αναλογικότητας στην ελληνική έννομη τάξη: Από τη νομολογιακή εφαρμογή της στη συνταγματική της καθιέρωση. Αθήνα-Θεσσαλονίκη: Εκδόσεις Σάκκουλα.
- [40] European Commission for Democracy through Law (Venice Commission), Report on a rule of law and human rights compliant regulation of spyware, CDL-AD(2024)043, 141η Ολομέλεια (Βενετία, 6-7 Δεκεμβρίου 2024).
- [41] ECtHR, Klass and Others v. Germany, App. no. 5029/71, 6 Σεπτεμβρίου 1978 (§§ 55-56, 59: όρια μυστικής παρακολούθησης, αναγκαιότητα εγγυήσεων κατά της κατάχρησης).
- [42] ECtHR, Roman Zakharov v. Russia [GC], App. no. 47143/06, 4 Δεκεμβρίου 2015 (§ 249: η δικαστική άδεια ως «σημαντική εγγύηση κατά της αυθαιρεσίας»· η έλλειψη επαρκών εγγυήσεων παραβιάζει το άρθρο 8).
- [43] Authority for the Assurance of Communications Confidentiality (ADAE). Ετήσιες Εκθέσεις Πεπραγμένων (2022-2024) και σχετικά πορίσματα. adae.gov.gr.

- [44] Parliamentary Assembly of the Council of Europe (PACE), Resolution 2513(2023), Pegasus and similar spyware and secret state surveillance, 11 Οκτωβρίου 2023.
- [45] Βουλή των Ελλήνων. (2019). Σύνταγμα της Ελλάδας. Άρθρο 20, παρ. 1 (δικαίωμα παροχής έννομης προστασίας). hellenicparliament.gr.
- [46] ECtHR, Big Brother Watch and Others v. the United Kingdom [GC], App. nos. 58170/13, 62322/14 & 24960/15, 25 Μαΐου 2021 (μαζικές παρακολουθήσεις· απαίτηση «end-to-end safeguards»· παραβίαση άρθρων 8 & 10).
- [47] The Wassenaar Arrangement on Export Controls for Conventional Arms and Dual-Use Goods and Technologies (1996, με μεταγενέστερες αναθεωρήσεις). wassenaar.org.
- [48] Κανονισμός (ΕΕ) 2021/821 του Ευρωπαϊκού Κοινοβουλίου και του Συμβουλίου, της 20ής Μαΐου 2021, για τη θέσπιση ενωσιακού συστήματος ελέγχου των εξαγωγών ειδών διπλής χρήσης.
- [49] United Nations (2011), Guiding Principles on Business and Human Rights: Implementing the 'Protect, Respect and Remedy' Framework, New York & Geneva.
- [50] Kaye, D. (2019), Report of the Special Rapporteur on the promotion and protection of the right to freedom of opinion and expression, UN Doc. A/HRC/41/35 (έκκληση για μορατόριουμ στην πώληση/χρήση surveillance spyware).
- [51] U.S. Department of Commerce, Bureau of Industry and Security (2021), Commerce Adds NSO Group and Other Foreign Companies to Entity List for Malicious Cyber Activities.
- [52] Apple Inc. (2021), «Apple sues NSO Group to curb the abuse of state-sponsored spyware», Apple Newsroom· και WhatsApp/Meta v. NSO Group - ιδιωτικές προσφυγές για παράνομη πρόσβαση.
- [53] Feldstein, S. (2021). The Rise of Digital Repression: How Technology is Reshaping Power, Politics, and Resistance. New York: Oxford University Press.
- [54] Anstis, S. (2024). «Regulating transnational dissident cyber espionage». International & Comparative Law Quarterly, 73(1), σελ. 259-274.
- [55] Νόμος 4790/2021, άρθρο 87 (απαγόρευση ενημέρωσης θιγομένου για λόγους εθνικής ασφάλειας) - κριθέν ανίσχυρο με την ΣτΕ Ολομ. 465/2024.
- [56] ΣτΕ Ολομέλεια 465/2024 (υπόθεση Ν. Ανδρουλάκη). Ομόφωνη κρίση περί αντισυνταγματικότητας του άρθρου 87 ν. 4790/2021: η καθολική απαγόρευση

ενημέρωσης του θιγομένου «αποτελεί υπέρμετρο περιορισμό του απαραβίαστου της επικοινωνίας, που δεν δικαιολογείται στο πλαίσιο της λειτουργίας του κράτους δικαίου».

- [57] ECtHR, Weber and Saravia v. Germany (dec.), App. no. 54934/00, 29 Ιουνίου 2006 (υποχρέωση εκ των υστέρων ενημέρωσης μόλις εκλείψει η απειλή).
- [58] EU Agency for Fundamental Rights (FRA), Surveillance by intelligence services: fundamental rights safeguards and remedies in the EU (Vol. I & II, 2015/2017· 2023 update).
- [59] Forbidden Stories & συνεργαζόμενα MME (2021). The Pegasus Project. forbiddenstories.org.
- [60] Richard, L. & Rigaud, S. (2023). Pegasus: How a Spy in Your Pocket Threatens the End of Privacy, Dignity, and Democracy. New York: Henry Holt.
- [61] European Parliament - PEGA Committee, Report on the investigation of alleged infringements and maladministration in the application of Union law in relation to the use of Pegasus and equivalent surveillance spyware (Rapporteur: Sophie in 't Veld), 2023.
- [62] European Parliament, Recommendation to the Council and the Commission following the inquiry into the use of Pegasus and equivalent surveillance spyware, P9_TA(2023)0244, 15 Ιουνίου 2023.
- [63] Wikipedia. Σκάνδαλο υποκλοπών επί κυβέρνησης Κυριάκου Μητσοτάκη. Ανακτήθηκε από https://el.wikipedia.org/wiki/Σκάνδαλο_υποκλοπών_επί_κυβέρνησης_Κυριάκου_Μητσοτάκη
- [64] Predatorgate. Η έρευνα για τις υποκλοπές και τα κατασκοπευτικά λογισμικά στην Ελλάδα. Ανακτήθηκε από <https://predatorgate.gr/>
- [65] OCCRP (26.2.2026), «Greek Court Hands Down Maximum Sentences in 'Predator' Spyware Case, Orders More Prosecutions». occrp.org.
- [66] Amnesty International (27.2.2026), «Greece: Convictions in 'Predatorgate' scandal offer rare accountability in abuse of surveillance technology». amnesty.org.
- [67] in.gr. (2026, Μάρτιος 8). Εκείνοι που δεν ζήτησαν δικαίωση: Οι στόχοι των υποκλοπών μέσα από τη λίστα Μενουδάκου. Ανακτήθηκε από <https://www.in.gr/2026/03/08/politics/politiki-grammateia/ekeinoi-pou-den-zitisan-dikaiosi-oi-stoxoi-ton-ypoklopon-mesa-apo-ti-lista-menoudakou/>

- [68] Εφημερίδα των Συντακτών (ΕΦΣΥΝ). (2026, Μάρτιος 5). ΣτΕ για υποκλοπές: Εντολή στην ΕΥΠ να διαβιβάσει τον φάκελο παρακολούθησης του Κουκάκη. Ανακτήθηκε από https://www.efsyn.gr/ellada/dikaiosyni/503118_ste-gia-ypoklopes-entoli-stin-eyyp-na-diabibasei-ton-fakelo-parakoloythisis
- [69] ICIJ (27.2.2026), «Greek court convicts Intellexa founder Tal Dilian, three others in wiretapping scandal». [icij.org](https://www.icij.org).
- [70] Άρειος Πάγος - πόρισμα ποινικής έρευνας (Ιούλιος 2024): απαλλαγή κρατικών υπηρεσιών (ΕΥΠ/ΕΛ.ΑΣ.) από εμπλοκή στην παράνομη χρήση Predator· παραπομπή ιδιωτών.
- [71] Human Rights Watch (2.3.2026), «Greek Court Finds Spyware Executives Guilty». [hrw.org](https://www.hrw.org).
- [72] Mega TV. (2026, Φεβρουάριος 27). Υπόθεση υποκλοπών: Ένοχοι και οι 4 ιδιώτες που εμπλέκονται με το παράνομο κατασκοπευτικό λογισμικό Predator. Ανακτήθηκε από <https://www.megatv.com/2026/02/27/ypothesi-ypoklopon-enoxoi-kai-oi-4-idiotες-pou-emplekontai-me-to-paranomo-kataskopeytiko-logismiko-predator/>
- [73] Το Βήμα & Τα Νέα (Μάρτιος 2026): δηλώσεις Τ. Dilian, αμετάβλητη κυβερνητική θέση και αντιδράσεις της αντιπολίτευσης.
- [74] ERT News. (2026). Πολιτική θύελλα στον απόηχο της δικαστικής απόφασης για τις υποκλοπές. Ανακτήθηκε από <https://www.ertnews.gr/eidiseis/politiki-thyella-ston-apoixo-tis-dikastikis-apofasis-gia-tis-ypoklopes/>
- [75] inside story (24.3.2026), αποκλειστική δήλωση Τ. Dilian με αφορμή την καθαρογραφή της καταδικαστικής απόφασης του Μονομελούς Πλημμελειοδικείου Αθηνών. [insidestory.gr](https://www.insidestory.gr).
- [76] Mega TV. (2026, Μάρτιος 13). Mega Stories: «Βόμβα» από καταδικασθέντα για το predator - «Συνεργαζόμαστε μόνο με κυβερνήσεις». Ανακτήθηκε από <https://www.megatv.com/2026/03/13/mega-stories-vomva-apo-katadikasthenta-gia-to-predator-synergazomaste-mono-me-kyverniseis/>
- [77] EDRi (European Digital Rights) & Homo Digitalis (1.4.2026), «Predatorgate: Breaking the chain of impunity of the spyware underworld». [edri.org](https://www.edri.org).
- [78] Ευρωπαϊκό Κοινοβούλιο (European Parliament). (2026, Μάρτιος 9). Κράτος δικαίου στην Ελλάδα: συζήτηση για τις καταδίκες του Predatorgate. Συνέλευση Ολομέλειας. Ανακτήθηκε από

<https://www.europarl.europa.eu/news/el/agenda/plenary-news/2026-03-09/4/kratos-dikaiou-stin-ellada-suzitisi-gia-tis-katadikes-tou-predatorgate>

- [79] Κανονισμός (ΕΕ) 2024/1689 του Ευρωπαϊκού Κοινοβουλίου και του Συμβουλίου, της 13ης Ιουνίου 2024, για τη θέσπιση εναρμονισμένων κανόνων σχετικά με την τεχνητή νοημοσύνη (Πράξη για την Τεχνητή Νοημοσύνη). Επίσημη Εφημερίδα της Ευρωπαϊκής Ένωσης, L 2024/1689, 12.7.2024.
- [80] Ευρωπαϊκή Επιτροπή. (2025). Κατευθυντήριες γραμμές σχετικά με τον ορισμό του συστήματος τεχνητής νοημοσύνης που θεσπίζεται με τον Κανονισμό (ΕΕ) 2024/1689 (Πράξη για την Τεχνητή Νοημοσύνη), C(2025) 924 final, Βρυξέλλες, 6.2.2025.